

STATE OF NEW YORK

911--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. FORREST -- read once and referred to the Committee on Correction -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the correction law, in relation to clarifying the definition of persons with a disability for purposes of the definition of special populations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraphs (c) and (d) of subdivision 33 of section 2 of
2 the correction law, as added by chapter 93 of the laws of 2021, are
3 amended to read as follows:

4 (c) with a disability as defined in paragraph (a) of subdivision twenty-one of section two hundred ninety-two of the executive law, which
5 includes all diagnosable conditions, including all people on the office
6 of mental health caseload currently and all people with any disability
7 (including but not limited to any intellectual, mental health, develop-
8 mental, cognitive, physical, mobility, sensorial, medical, or other
9 disability, a traumatic brain injury, or an organic brain syndrome);
10 [or] (d) who had been on the office of mental health caseload, or had a
11 diagnosis of any disability (including any intellectual, mental health,
12 developmental, cognitive, physical, sensorial, medical, or other disa-
13 bility) within the previous year; or (e) who is pregnant, in the first
14 eight weeks of the post-partum recovery period after giving birth, or
15 caring for a child in a correctional institution pursuant to subdivi-
16 sions two or three of section six hundred eleven of this chapter.

17 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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